

25LBCV00390 25LBCV00390

County: los-angeles

Division: Civil Law and Motion

Department: S25

Hearing date: 2026-08-26

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Case Number: 25LBCV00390 Hearing Date: August 26, 2026 Dept: S25

Motion: Plaintiff Socorro Sisneros' Motion to Stay Proceedings

Moving Party: Plaintiff Socorro Sisneros ("Plaintiff")

Responding Party: Defendant General Motors, LLC ("Defendant")

Tentative Ruling

Plaintiff moves the Court to stay the proceedings pending the Second District Court of Appeal's resolution of Price v. General Motors (B353231, app. pending) pursuant to the Court's "inherent power to stay proceedings in the interest of justice and to promote judicial efficiency." (Freiberg v. City of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489.) Plaintiff states that the appeal of Price v. General Motors will determine a novel legal issue: whether a manufacturer's post-filing election into the Song-Beverly Act's new procedural regime can retroactively time-bar a complaint that was already on file when the new statutes of repose and limitations took effect.

Defendant objects to the Exhibits attached to Plaintiff's declaration submitted in support of the instant motion as no judicial notice has been properly requested. Defendant states that the power to stay proceedings are allowed "[o]nly in rare circumstances will a litigant in one cause be compelled to stand aside while a litigant in another settles the rule of law that will define the rights of both." (Landis v. North American Co. (1936) 299 U.S. 248, 254-255.) Defendant also notes Plaintiff has not meet their burden of establishing that balance of the equities favors a stay and that no timeline for appeal has been established.

No reply has been received.

Defendant's objections to Exhibits A-C of the Lister Declaration are sustained. Plaintiff should have requested judicial notice of the Exhibits. (Cal. Rules of Court, rule 3.1306.)

The Court recognizes that Price v. General Motors may affect the Court's ruling in this action; however, to indefinitely delay this case to wait for Second District Court of Appeal to rule on Price v. General Motors is unjustified and Plaintiff has not met Plaintiff's burden of establishing that the balance of equities favors a stay. Plaintiff Socorro Sisneros' Motion to Stay Proceedings is DENIED.